

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CLCL055918: WELLS FARGO BANK, N.A. vs BLASA BRACAMONTES
07/13/2026 in Department 42
Motion to Deem Facts Admitted**

Motion: Plaintiff's Motion for Order Deeming Request for Admissions to Defendant Admitted (*Unopposed*)

Tentative Ruling:

The Court is inclined to rule as follows:

Plaintiff Wells Fargo Bank, N.A.'s Motion for Order Deeming Request for Admissions to Defendant Admitted is GRANTED. The Request for Admissions are deemed admitted as of this date. (Code Civ. Proc., § 2033.280.) No sanctions are awarded as they have not been sought by the moving party. Counsel for Plaintiff to give notice of this Court's ruling.

Discussion:

Pursuant to Code of Civil Procedure section 2033.280 "if a party to whom a request for admission has been directed fails to serve a timely response, that party thereby waives any objection to the requests, including one based upon privilege or work product ... The Requesting party may move for an order that the ... truth of any matters specified in the requests be deemed admitted, as well as a monetary sanction under Section 2023."

There is no requirement that a party engage in a meet-and-confer process before filing a motion to compel initial responses. Moreover, such a motion may be brought at any time after the responding party fails to serve timely responses.

Here, Defendant has failed to serve any responses to the Requests for Admission. Accordingly, pursuant to Code of Civil Procedure section 2033.280, the motion is properly granted and the Requests for Admission are deemed admitted.